



March 14, 2025

Mr. Faisal D'Souza
National Coordination Office
2415 Eisenhower Avenue
Alexandria, VA 22314

RE: Office of Science and Technology Policy (OSTP), Networking and Information Technology Research and Development Program (NITRD) National Coordination Office (NCO) and National Science Foundation (NSF) Request for Information concerning AI Action Plan; Silicon Valley Leadership Group Comments

Dear Mr. D'Souza:

The Silicon Valley Leadership Group (SVLG) submits the following comments to the Networking and Information Technology Research and Development Program National Coordination Office (NITRD NCO) regarding the Development of an Artificial Intelligence (AI) Action Plan (Plan). SVLG appreciates the opportunity to offer comments and looks forward to working with federal leaders throughout the development of the Plan.

Background

SVLG was founded in 1977 by one of Silicon Valley's pioneers, David Packard. Today, the organization serves as the most effective and dynamic business association representing the Innovation Economy and its ecosystem. Members include global-leading companies and innovative startups. Collectively, member companies account for more than \$4 trillion in business activity.

Infrastructure leadership

The federal government can take concrete steps to ensure adequate energy for data centers that power AI research, development and deployment. First, federal agencies (e.g., FERC) should be granted greater authority to site and permit interstate transmission lines deemed to be in the national interest and streamline approval processes. Next, federal policies should be implemented to prevent states from enacting discriminatory policies that disproportionately burden data centers. This could include establishing a national standard for data center electricity rates and ensuring equal access to economic incentives. Finally, the federal government should incentivize the development of a variety of power sources.

Efforts to reduce foreign overregulation and barriers to U.S. innovation

Foreign governments should not be allowed to impose excessive restrictions on the development of US innovation, such as requiring pre-deployment testing of AI models. Policy and regulatory leaders should engage with counterparts in the European Union to push back on harmful, overreaching regulations, especially around implementation of the EU AI Act and DMA/DSA concerns. Finally, government officials should work to avoid a situation where other foreign governments follow these approaches.

Unified, national and risk-based approach to AI policy

Federal legislation should preempt state laws regarding the development of frontier AI models. The best approach is to create a unified federal approach to managing the risks of these models, while allowing states to address concerns related to high-risk, consumer-facing applications where they identify clear gaps. Agencies should be directed to clarify the applicability of existing law to AI technology and reduce the need for duplicative new laws.

Industry access to publicly available data

Balanced copyright rules like fair use and text-and-data mining exceptions enable innovation while supporting rightsholders. Allowing AI systems to learn from prior knowledge and publicly available data unlocks scientific breakthroughs and social advances. This avoids uncertain and lengthy negotiations with data holders during model development or experimentation.

Further, specific personal data may be included in publicly available information. This data cannot be removed easily or without impact to quality. Excluding, masking or filtering out personal data pulled from the open web from training data could undermine the quality of the model, and attempts to remove such information and retrain the model would be resource intensive and lengthy.

Transparency disclosures should be feasible and meaningful, and when properly applied, can foster trust and accountability. But any rules must be aimed at improving end-user experience, avoid disclosure of trade secrets, and not threaten product safety.

Research leadership

Academic institutions play a pivotal role in the innovation ecosystem and university-based research will fuel the AI breakthroughs of the future. Maintaining U.S. leadership in AI will require robust federal investment, including in fundamental research and computing resources. This should include establishing and funding the National AI Research Resource (NAIRR) to ensure broad access to computing power. Further, AI has the potential to radically increase the speed of scientific research across disciplines: from accelerating the development of new treatments for diseases to quickly creating new materials to be used in future technologies. We must ensure that there are necessary resources available so that academia can harness the

power of AI to accelerate scientific discovery. Such technical advances will also empower innovators to monetize new technologies for consumers and spur greater economic growth.

Conclusion

Thank you for your consideration of these comments. Please do not hesitate to contact me if you have any questions or require additional clarification.

With continued collaboration between policymakers and industry, we can jointly grow America's dominance in artificial intelligence innovation.

Sincerely,

Peter Leroe-Muñoz
General Counsel
SVP, Technology and Innovation Policy

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